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April 15, 2025

ENGROSSED HOUSE
BILL NO. 1360

By: Hasenbeck and Ranson of the
House

and

Alvord of the Senate

An Act relating to protection from domestic abuse; amending 68 O.S. 2021, Section 2899.1, which relates to requests to keep personal information confidential; permitting the program manager of the Oklahoma Attorney General's Address Confidentiality Program to request that certain information not be made publicly available; permitting certain officials to obtain court order to keep certain records confidential; providing definition; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 68 O.S. 2021, Section 2899.1, is amended to read as follows:

Section 2899.1. A. All elected county officials, peace officers and law enforcement organizations in the State of Oklahoma shall be permitted to request to a county assessor that personal information regarding elected county officials, peace officers or undercover or covert law enforcement officers not be made publicly available on the Internet, but instead kept in a secure location at

1 the office of the county assessor where it may be made available to
2 authorized persons pursuant to law. The program manager of the
3 Oklahoma Attorney General's Address Confidentiality Program,
4 administered under Section 60.14 of Title 22 of the Oklahoma
5 Statutes, shall be permitted to request to a county assessor that
6 personal information regarding a certified Address Confidentiality
7 Program participant, upon the participant's proof of certification,
8 not be made publicly available on the Internet, but instead kept in
9 a secure location at the office of the county assessor where it may
10 be made available to authorized persons pursuant to law.

11 B. Any elected county official, peace officer ~~or~~, law
12 enforcement official on behalf of an undercover or covert officer,
13 or Address Confidentiality Program participant who wishes to have
14 the personal information of the elected county official, peace
15 officer ~~or~~, undercover or covert officer, or Address Confidentiality
16 Program participant that is contained in the records of a county
17 assessor be kept confidential must obtain an order of a court that
18 requires the county assessor to maintain the personal information of
19 the person or entity in a confidential manner. Such an order must
20 be based on a sworn affidavit by the elected county official, peace
21 officer ~~or~~, law enforcement official, or current Address
22 Confidentiality Program participant which affidavit:

23 1. States that the individual whose information is to be kept
24 confidential is:

- a. an elected county official,
 - b. a peace officer, ~~or~~
 - c. an undercover or covert officer; ~~and~~, or
 - d. a current Address Confidentiality Program participant;
- and

2. Sets forth sufficient justification for the request for confidentiality.

C. Upon receipt of such an order, a county assessor shall keep such information confidential and shall not disclose the confidential information to anyone not specifically authorized by law to view the information, unless disclosure is specifically authorized in writing by that person or the affiant. A county assessor shall not post such confidential information on the Internet.

D. As used in this section:

1. "Elected county official" means a person elected to a county office;

2. "Peace officer" shall have the same meaning as that term is defined in Section 99 of Title 21 of the Oklahoma Statutes; ~~and~~

3. "Program participant" shall have the same meaning as that term is defined in Section 60.14 of Title 22 of the Oklahoma Statutes; and

4. "Personal information" means:

- a. the home address of a person,

1 b. the home address of the spouse, domestic partner or
2 minor child of a person, and

3 c. any telephone number or electronic mail address of a
4 person.

5 SECTION 2. This act shall become effective July 1, 2025.

6 SECTION 3. It being immediately necessary for the preservation
7 of the public peace, health or safety, an emergency is hereby
8 declared to exist, by reason whereof this act shall take effect and
9 be in full force from and after its passage and approval.

10 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
11 April 15, 2025 - DO PASS
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